

Court No. - 38

Case :- WRIT - C No. - 29498 of 2018

Petitioner :- Vinod Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ganga Prasad Gupta

Counsel for Respondent :- C.S.C.,Abhishek Srivastava,Mahboob Ahmad

Hon'ble Abhinava Upadhyaya,J.

Hon'ble Rajiv Gupta,J.

As prayed, put up this case on 5.9.2018 as fresh to enable the learned counsel appearing for respondent no.3 to seek instruction in the matter.

When the case is listed next the name of Sri Ravi Anand Agarwal be shown as counsel for the respondent no.3.

Order Date :- 30.8.2018

SKM

(Rajiv Gupta,J.)

(Abhinava Upadhyaya,J.)

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Srivastava, Mahboob Ahmad, Ravi Anand Agarwal

Hon'ble Abhinava Upadhya, J.

Hon'ble Rajiv Gupta, J.

On the request made on behalf of learned counsel for the respondents, put up this case on Monday i.e. 10.09.2018, as fresh.

Order Date :- 5.9.2018

Arun Gangwar

(Rajiv Gupta, J.) (Abhinava Upadhya, J.)

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Petitioner :- Vinod Kumar Gupta

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ganga Prasad Gupta

Counsel for Respondent :- C.S.C., Abhishek Srivastava, Mahboob Ahmad, Ravi Anand Agarwal

Hon'ble Abhinava Upadhyay, J.

Hon'ble Rajiv Gupta, J.

Heard learned counsel for the petitioner, learned Standing Counsel appearing for the State-respondents and Sri Ravi Anand Agarwal, learned counsel appearing for the respondent-Power Corporation.

By means of this writ petition, the petitioner has challenged the recovery citation dated 26.2.2018 for a sum of Rs. 18,37,465/-.

The main ground for challenging the citation is that the petitioner was initially granted connection being Connection No. 009050 and the bill that was being sent to the petitioner was with regard to Connection No. 015057.

It is submitted that the petitioner made several representations to the Executive Engineer to issue a correct bill with correct connection number but that was never sent and now recovery is being made for electricity dues.

Learned counsel for the respondents was requested to seek instruction in the matter and upon instruction he submits that initially in the connection number that was given to the petitioner at the time of connection in 2013 there was a clerical mistake. Now the petitioner's Connection Number is 015057, which has now been corrected. That apart from the instructions received it appears that the petitioner himself wrote a letter on 8.5.2018 to the Executive Engineer accepting the liability of Rs. 18,37,465/- but prayed for some instalments.

Now that connection number has been corrected and the petitioner has also been sent the bill and

the petitioner having accepted the liability, it would be appropriate to direct the Executive Engineer-respondent no.3 to look into the claim of the petitioner with regard to payment in instalments under Paragraph 6.14 of the Electricity Supply Code, 2005. In case, such an application is made to the Executive Engineer, he will look into the claim of the petitioner and pass appropriate orders in accordance with law, as far as possible, within a period of one month from the date a certified copy of this order is presented before the authority concerned.

For a period of one month no coercive steps shall be taken against the petitioner pursuant to the order of recovery dated 26.2.2018.

With the aforesaid direction/observation, the writ petition stands finally disposed of.

Order Date :- 10.9.2018
SKM

(Rajiv Gupta,J.) (Abhinava Upadhyay,J.)